



CHAPTER xxxix.

An Act to make provision as to the rates dues A.D. 1924.
tolls and charges leviabie at certain of the
harbours docks and piers of the Great Western
Railway Company and at the Fishguard Harbour
of the Fishguard and Rosslare Railways and
Harbours Company. [14th July 1924.]

WHEREAS the undertaking of the Great Western
Railway Company (in this Act referred to as
“the Company”) includes the following harbour dock and
pier undertakings namely Bute Docks Cardiff Newport
Docks Barry Docks Penarth Harbour and Dock Port
Talbot Docks Llanelly Dock Briton Ferry Dock Plymouth
Docks Newquay Harbour Bridgwater Dock and (jointly
with the London Midland and Scottish Railway Company)
Lydney Harbour and Dock :

And whereas the undertaking of the Fishguard and
Rosslare Railways and Harbours Company (in this Act
referred to as “the Fishguard Company”) includes the
Fishguard Harbour Undertaking :

And whereas the maximum rates dues tolls and
charges which the Company and the Fishguard Company
respectively are authorised to levy and make in respect
of the said undertakings are prescribed by the Acts
specified in the Schedule to this Act :

And whereas the rates dues tolls and charges which
the Company and the Fishguard Company may respect-
ively levy and make in respect of the said undertakings
have from time to time been increased or altered by Orders

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(*Dock Charges*) Act, 1924.

A.D. 1924. made by the Minister of Transport under the Harbours
Docks and Piers (Temporary Increase of Charges) Acts
1920 to 1922 :

And whereas an Order relating to the said under-
takings and intituled "the Great Western Railway
Harbours Docks and Piers (Temporary Increase of
Charges) Order 1924" was made under the said Acts
on the twelfth day of February one thousand nine
hundred and twenty-four which Order will expire on the
fifteenth day of February one thousand nine hundred and
twenty-five :

And whereas in order to enable the Company and
the Fishguard Company thereafter to levy and make
adequate rates dues tolls and charges in respect of the
said undertakings respectively owned by them it is
expedient that the operation of the said Order should be
continued subject to the provisions in this Act contained
for revision of the rates and charges authorised by the
said Order :

And whereas the objects of this Act cannot be
attained without the authority of Parliament :

May it therefore please Your Majesty that it may be
enacted and be it enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

Short title.

1. This Act may be cited for all purposes as the
Great Western Railway (Dock Charges) Act 1924.

Rates and
charges.

2. The Great Western Railway Harbours Docks and
Piers (Temporary Increase of Charges) Order 1924 made
by the Minister of Transport under the Harbours Docks
and Piers (Temporary Increase of Charges) Acts 1920 to
1922 relating to the respective undertakings specified in
the Schedule to this Act shall notwithstanding anything
contained in those Acts or Order but subject to the
provisions of this Act continue in operation until the
first day of October one thousand nine hundred and
twenty-nine.

Deposit of
lists of
pre-war
charges.

3. The Company shall until the first day of October
one thousand nine hundred and twenty-nine keep open
for public inspection at their principal office at every
harbour dock or pier mentioned in the Schedule to this

Act the book or list specifying the charges to which the Great Western Railway Harbours Docks and Piers (Temporary Increase of Charges) Order 1924 relates and which were in operation at such harbour dock or pier on the thirty-first day of December one thousand nine hundred and thirteen and the conditions attaching to any such charges and the Company shall deposit on or before the thirty-first day of December one thousand nine hundred and twenty-four a certified copy of each such book or list at the offices of the Ministry of Transport.

A.D. 1924.
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4.—(1) If at any time it is represented in writing to the Minister of Transport (in this section referred to as “the Minister”)—

Revision of
rates and
charges.

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Company or the Fishguard Company in respect of the undertakings respectively owned by them solely or jointly with another company;

that in the circumstances then existing all or any of the rates dues tolls or charges authorised in pursuance of this Act should be revised the Minister may if he thinks fit at any time after the fifteenth day of February one thousand nine hundred and twenty-five make an Order revising all or any of such rates dues tolls or charges as aforesaid and may fix the date as from which such Order shall take effect and thenceforth such Order shall be observed until the same expires or is revoked or modified by a further Order of the Minister made in pursuance of this section. Provided that before making an Order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) No application may be made under this section for a general revision of rates dues tolls and charges for the time being authorised under this Act within twelve months after the date of an Order made by the Minister for a general revision thereof and no application may be made for a revision of any particular rates dues tolls or charges within twelve months after the date of an Order made by the Minister for a general revision or of any

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A.D. 1924. — previous application for a revision of the particular rates
dues tolls or charges in question.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section—

(a) as if the Minister were referred to therein in lieu of the Board of Trade;

(b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an Order of the Minister under section 2 of the said Act of 1874; and

(c) as if in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the President or of one of the secretaries of the Board.”

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

Costs of
Act.

5. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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(Dock Charges) Act, 1924.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1924.

Acts.	Undertakings to which applicable.
Bute Docks Acts 1865 and 1874 -	Bute Docks Cardiff.
The Act 5 & 6 Will. IV. cap. 75 -	Newport Docks.
Alexandra (Newport) Dock Act 1865 -	
Alexandra (Newport and South Wales) Docks and Railway Act 1904 -	
Barry Dock and Railways Act 1884 -	Barry Docks.
Penarth Harbour Dock and Railway Act 1857 - - - - -	Penarth Harbour and Dock.
Ely Tidal Harbour and Railway Act 1856	
Port Talbot Railway and Docks Act 1894	Port Talbot Docks.
Llanelly Railway and Dock Act 1853 -	Llanelly Dock.
Briton Ferry Dock and Railway Act 1851	Briton Ferry Dock.
Great Western Railway Act 1880 -	Plymouth Docks.
The Act 7 Vict. cap. 23 - - -	Newquay Harbour.
The Act 5 Geo. IV. cap. 120 -	Bridgwater Dock.
The Act 50 Geo. III. cap. 215 -	Lydney Harbour and Dock.
Great Western and Midland Railway Companies (Severn and Wye and Severn Bridge Railway) Act 1894	
Fishguard and Rosslare Railways and Harbours Act 1899 - - -	
	Fishguard Harbour.

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